IN THE SUPREME COURTOF INDIA AT NEW DELHI

(OrderXVI Rule 4(1)(a)

(Civil Appellate Jurisdiction)

Special Leave Petition (C) No._____/2011

(Under Article 136 of the Constitution of India).

(Against the Final Judgment and award dated 5.2.2010 of the Hon'ble High Court of Karnataka at Bangalore in M.F.A. No.4914/2006 (MV)

With a prayer for interim relief.

POSITION OF THE PARTIES

	In the High Court	In this Hon'ble Court

Between:

1. Smt. V. Sandhya,
aged 36 years,
w/o. late H.S.Gururaj

2. Kum. Apoorva Raj,
aged 11 years,
d/o. late H.S.Gururaj
(minor, represented by
Her mother and natural
Guardian – the 1st petitioner)

3. Smt. Kamala Achar,
aged 64 years,
w/o. late H.N.S.Achar

(Petitioners 1 to 3 are all
Residing at Door No.592,
24th Cross,
BSK II Stage, Bangalore. Appellants Petitioners

And:

1. The oriental Insurance Co. Ltd.,
Srinivas Mansion,
No.364-1, 10th "B" Main Road,
Jayanagar,
Bangalore, represented by its
Branch Manager.

2. Sri Ramaswamaih,
major,
s/o. S.R.Keshava Narayana,
r/o. Door No.16, 18th Main Road,
R.K.Extension,
3rd Stage, Padmanabha Nagar,
Bangalore.

3. Sri S.R.Balasurahmanya @ Praveen,
major,
s/o. Ramaswamaiha,
r/o. Door No.16, 18th Main Road,
R.K.Extension,
3rd Stage, Padmanabha Nagar,
Bangalore. Respondents Respondents

PETITION FOR SPECIAL LEAVE UNDER ARTICLE 136 OF THE CONSTITUTION OF INDIA READ WITH ORDER XVI OF THE SUPREME COURT RULES

To,
The Hon'ble Chief Justice of India
and his Companion Justices of the
Hon'ble Supreme Court of India,
New Delhi.

The humble petition of the petitioners above-named most respectfully showeth as follows:-

That this Special Leave Petition is directed against the judgment and award dated 5.2.2010 of a Division Bench of the Hon'ble High Court of Karnataka at Bangalore, in M.F.A. No.4914/2006(MV), on its file, whereby the said appeal has been allowed in part, and impliedly dismissing the same in so-far as the claim of the petitioners for

award of compensation of Rs.2 Crores that they had prayed for in the claim petition from which the said appeal had arisen.

QUESTIONS OF LAW :

Regard being had to the incontrovertible but established fact that the deceased was a Software Engineer who was employed as an Assistant project Manager at M/s. INFOSYS TECHNOLOGIES LTD., and had been drawing a gross monthly emolument of Rs.51,000/- (Rs.50,918/-) and was fatally knocked down by the speeding vehicle driven by the 3rd respondent and that the deceased was aged about 30 years when he succumbed to the injuries and breathed his last on 1.1.2004. Has not the High Court erred in not awarding proper compensation to the petitioners that had claimed in their claim petition filed before the Motor Accidents Claims Tribunal (4), Bangalore City ?

Keeping in view the land-mark ruling of this Hon'ble Court in the case of Sarala Verma v/s. The Delhi Transport Corporation reported in 2009(6) SCC at page 121 (equivalent 2009 ACJ page1298). Was it not necessary that the compensation required to be awarded to the petitioners had to be in conformity with the law laid down in the said ruling particularly when the deceased was a promising young Software Engineer, aged 30 years and had an outstanding and bright-career of 30 more years ?

Having categorically recorded a specific finding, based on the material on record that the gross salary drawn by the deceased was Rs.50,198/- in December 2000 and that he was killed at the aged of 30 and would have otherwise lived, served and earnt 30 more years from then, is not the High Court in error not properly applying multiplier 17, that too, without grappling with and applying the yardsticks and guidelines laid down by this Hon'ble Court, in Sarala Verma's case ?

Is not the award of Rs.15,000/- towards loss of love and affection too paltry similarly as the award of Rs.10,000/- for loss of consortium and loss of estate/loss of expectancy of life, particularly having regard to the pain and agony that the petitioners have been eternally subjected to on account of the bereavement that has befallen them, resulting in the family being in harness ?

Would not, in the facts and circumstances of the case, as also keeping in view the educational-qualification, age, status, the prospects of the deceased moving on to higher and higher echelons in service and a host of other germane circumstances, the claim for Rs.2 Crores that the petitioners had made before the Motor Accidents Claims Tribunal (4), Bangalore City, and pursued by them before the Hon'ble High Court require to be awarded with interest thereon from the date of the claim petition ?

Are not the judgment and award appealed from herein opposed to the law laid down by this Hon'ble Court in Sarala Verma's case ?

DECLARATION IN TERMS OF RULE 4(2) :

The petitioners state that no other petition seeking leave to appeal has been filed by either of them against the judgment questioned in this Special Leave Petition, previously.

DECLARATION IN TERMS OF RULE 6 :

The annexures P1 to P4 produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave petition has arisen.

GROUNDS:

Leave to appeal is sought by the petitioners, on the following grounds.

PLEASE REPEAT THE QUESTIONS OF LAW AS THE GROUNDS OF APPEAL.

GROUNDS FOR INTERIM RELIEF :

By the impugned judgment, the Hon'ble High Court has directed the enhanced compensation of Rs.28,15,920/- being deposited within 4 weeks from 5.2.2010 and there upon the said amount being held in Fixed Deposits in the names of the respective petitioners, and a sum of Rs.2,15,920/- with proportionate interest thereon being released in favour of the petitioners herein, in equal proportion. The 1st respondent-insurer is obliged in law promptly to comply with the same. It has no so-far done so, as the petitioners sincerely believe. The same has caused them immense financial hardship, even the educational-pursuits and medical-care of the petitioners 2 and 3 respectively having been badly affected thereby. Even the amount originally awarded excepting very small portion thereof having been held in deposit as directed by the Tribunal, the petitioners have been left wit no liquid financial resources. Therefore, it is most respectfully prayed that this Hon'ble Court be pleased to issue an interim direction as prayed for herein below.

MAIN PRAYER :

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

1. ***grant*** Special Leave to appeal from the final judgment and award dated 5.2.2010 passed by the Hon'ble High Court of Karnataka, Bangalore, in M.F.A. No.4914/2006(MV) on its file;

and

2. **pass** such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the award of the costs of the proceedings althrough, and in the interest of justice and equity.

PRAYER FOR INTERIM RELIEF :

It is, therefore, most respectfully prayed that your Lordships may graciously be pleased to :

Issue an interim direction to the 1st respondent to pay to the petitioners, as an interim measure such sum of money as this Hon'ble Court would be pleased to direct and also for their requirements, medical expenses, education of the 2nd petitioner and for meeting their family maintenance. It is therefore respectfully submitted that the directions contained in the impugned award/judgment be modified by ordering a substantial sum being released to the petitioners, as an interim measure to deposit the enhanced compensation out of Rs.28,15,920/- with interest thereon at 6% p.a. as has been directed in the impugned judgment, without brooking any further delay in the matter, and permitting the petitioners herein to withdraw the same for depositing the remaining sums of money in Fixed deposits, pending disposal of this Special Leave Petition, in the interest of justice and equity.

FOR THIS ACT OF KINDNESS THE PETITIONERS ARE IN DUTY BOUND AND SHALL EVERY PRAY

New Delhi ( )
Date: ADVOCATE FOR THE PETITIONERS

Synopsis and List of Dates

The present petition is directed against that portion of the judgment dated 5.2.2010 passed by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore, in M.F.A. No.4914/2006(MV) on its file whereby the prayer for enhancing the compensation to Rs.2 Crores with interest thereon that the petitioners had claimed before the Motor Accidents Claims Tribunal (4), Bangalore City, in Case No. MVC 597/2001 on its file has not been granted as prayed for eventhough the award passed by the said Tribunal has been slightly modified by enhancing the compensation from Rs.19,20,264/- to Rs.47,36,184/- with interest thereon at 6% p.a. The petitioners who are the bereaved widow, minor daughter and mother respectively of the deceased H.S.Gururaj who was a promising young Engineer who was employed in the world-renowned-information-technology called M/s. INFOSYS TECHNOLOGIES LTD., as an Assistant Project Manager are thus quite highly aggrieved by that portion of the judgment and award whereby the legitimate claim that they had justly made before the Motor Accidents Claims Tribunal (4), Bangalore City, has not been granted in toto. Hence, this Special Leave Petition, most respectfully praying for the claim for compensation of Rs.2 Crores that they had made before the Motor Accidents Claims Tribunal (4), Bangalore City, being awarded as prayed for, in the heart-rending-circumstances and facts of the case which are briefly stated hereunder:-

FACTS OF THE CASE IN BRIEF :-

The deceased H.S.Gururaj – the husband of the 1st petitioner, the father of the 2nd petitioner and the son of the 3rd petitioner – was a promising young Engineer who was employed as an Assistant Project Manager in M/s. INFOSYS TECHNOLOGIES LTD. He had been

drawing a gross salary of Rs.50,918/- as at the date of his untimely demise on 1.1.2001 – the New Year having commenced for the petitioners with a gloom eternal sorrow and unbearable bereavement, in that, the said H.S.Gururaj who had been knocked down by the 3rd respondent when the said H.S.Gururaj was walking on the left-side of the 24th Cross Road near the BSK II Stage, Bangalore, along with a certain Sri Krishnammachari for reaching home, the driver of the motor-cycle which was being rashly, negligently and with a high-speed driven by the 3rd respondent dashed against H.S.Gururaj, who, consequently fell down sustained grievous injuries and could not survive despite immediate medical-care having been extended to him at the Devegowda Hospital, Bangalore, and thereafter at Mallya Hospital, Bangalore, the deceased having been an in-patient at the latter Hospital for a fortnight from 16.12.2000 – the day when he was so knocked down by the cruel motor-cycle that was rashly and negligently being driven by the 3rd respondent. The deceased, as already stated was a Software Engineer at Infosys Park of M/s. INSOSYS TECHNOLOGIES LTD., and was occupying the position of an Assistant Project Manager thereat. He was aged 30 years and was the sole-bread-winner of the family consisting of the petitioners herein. Apart from the total deprivation of the only source of their livelihood, it is heart-rending, deeply painful and eternally agonising that the petitioners have been bereaved of him the widowed-wife, the destitute-minor-child(daughter) and the widowed-mother having been in inexplicable distress and sorrow. Eventhough no amount of monetary compensation can bring back a smile on their faces and relieve them of the pain that they have been silently suffering since 16.12.2000, a monetary compensation would have been a poor recompense for all the permanent loss that has necessarily befallen them. So, they submitted a claim petition under Section 166 of the Motor Vehicles Act, 1988, before the Motor Accidents Claims Tribunal (4), Bangalore City, claiming a compensation of Rs.2 Crores with interest thereon, placing cogent and convincing evidence of probative value before the said Tribunal for substantiating the just and

legitimate claim that the petitioners had made in the said proceedings.

The respondents 2 and 3, though served remained unrepresented before the Tribunal. They were, therefore, placed ex parte in the proceedings. The 1st respondent – insurer, on the other hand, admitted the currency of a valid Motor Vehicles Insurance which had been operating from 3.11.2000 to 3.11.2001.

Eventhough the Insurance Company baselessly attributed negligence of the deceased H.S.Gururaj, rightly the Tribunal negatived the said stand of the insurer, and, upon an objective consideration of the entire documentary and oral-evidence placed before it by the parties passed an award on 27.10.2005 for a total sum of Rs.19,20,264/- with interest at 6% p.a. from the date of the claim petition till realisation of the amount of compensation so awarded.

Feeling aggrieved by the said award, in so-far as the total claim of Rs.2 Crores that the petitioners has made before the Tribunal having not been awarded, they appealed under Section 173(1) of the Motor Vehicles Act, 1988, in appeal No.MFA 4914/2006(MV) before the Hon'ble High Court of Karnataka at Bangalore. A Division Bench of the said Court has, by the impugned judgment dated 5.2.2010, modified the said award and directed that the petitioners' claimants be paid a total compensation of Rs.47,36,184/- with a direction that the enhanced compensation of Rs.28,15,920/- with interest thereon at 6% p.a. had to be deposited within 4 weeks from 5.2.2010.

It does not appear that the insurer has so-far deposited the said enhanced amount as directed in the impugned judgment. When approached, the 1st respondent mentioned to the petitioners 1 and 3 orally that it was intending to approach this Hon'ble Court with a Special Leave Petition against the said award/judgment and that, therefore, complying with the directions contained in the impugned

judgment would be dependant upon the outcome of the said petition. The petitioners do not have any knowledge of any such petition having been filed by the insurer, till date. Since they are highly aggrieved by the award and the judgment of the Tribunal and the Hon'ble High Court, respectively, to the extent that the just and legitimate claim of compensation of Rs.2 Crores has not been ordered in their favour. They are, therefore, constrained to present this Special Leave Petition most respectfully praying that this Hon'ble Court be pleased to grant the prayers made herein, in the interest of justice and equity.

It is most respectfully submitted that :-

(i) Having regard to the facts and circumstances of the case, the permanent deprivation that the petitioners have been suffering and have to continue to suffer all through their lives as also the prospects of the deceased entering higher echelons in the services of the world-renowned I.T. Company where he had been serving and a host of other germane circumstances including the established fact that the deceased was aged 30 years when he was fatally knocked down, it was necessary, in law and equity that the claim made by the petitioners required to be awarded in toto, keeping in view the well-settled principles of law that this Hon'ble Court has been pleased to laid down in the case of Sarala Verma v/s. The Delhi Transport Corporation reported in 2009(6) SCC at page 121 (equivalent 2009 ACJ page1298);

(ii) The Tribunal and the High Court have not applied the principles of law laid down in the afore-mentioned land-mark ruling of this Hon'ble Court, eventhough in para 5 of the impugned judgment, the Hon'ble High Court has placed reliance thereon but erred in not

properly applying multiplier 17 for working-out the dependency. The compensation of Rs.15,000/- for loss of love and affection Rs.10,000/- for loss of estate/expectancy and Rs.10,000/- for loss of consortium being too paltry a compensation for the same, the award and judgment of the Tribunal and the High Court richly commend being modified and the claim for Rs.2 Crores that the petitioners have made before the Tribunal would require to be awarded particularly in view of the principles laid down in Sarala Varma's case supra;

(iii) The High Court has failed to appreciate that the Tribunal has wrongly founded its judgment on an inaccurate calculation of the emoluments (Salary and allowances) of the deceased and has proceeded on a wrong assumption of the income of the deceased; and that the same has resulted in the Tribunal awarding a meager compensation with out the principles of law laid down by this Hon'ble Court in Surala Verma's case and several other rulins having been over-looked in passing the award.

and

(iv) Both the Tribunal and the High Court have failed to take into consideration the otherwise bright chances of his employment in any other organization world over, as also increasing in his emoluments, in view of his intellectual attainment and experience in the services of M/s. Infosys Technologies. The same is thus not in conformity of the ratio of the decision of his Hon'ble Court in Saralaverma's case supra.

LIST OF DATES

Sl.No.	Date	Particulars
1	1 / 2.12.2000	The deceased H.S.Gururaj who was an Assistant Project Manager at M/s. Infosys Technologies Ltd., returned from the United States of America after successfully undergoing a Project-Work on which the said company had sent him to the United States of America.
2	16.12.2000	The deceased H.S.Gururaj was knocked down by the speeding motor vehicle which was being driven rashly and negligently by the 3rd respondent.
3	16.12.2000 to 1.1.2001	He was an in-patient at Mallya Hospital, Bangalore, where he was being treated for the injuries that he had sustained in the impact.
4	1.1.2001	The fatal day when M.S.Gururaj left for his eternal abode, after suffering unbearable pain caused due to the injuries that he had sustained, thereby leaving the petitioners in larch and harness.
5	9.2.2001	The petitioners filed a claim petition under Section 166 of the Motor Vehicles Act, 1988, before the Motor Accidents Claims Tribunal (4), Bangalore City, in MVC No.597/2001, claiming a compensation of Rs.2 Crores with interest thereon.
6	27.10.2005	The Motor Accidents Claims Tribunal (4), Bangalore City, passed an award for Rs.19,20,264.00 with interest 6% p.a. from the date of the claim petition till realisation.
7	5.2.2010	The appeal in M.F.A. No.4914/2006 (MV) that the petitioners had filed in the Hon'ble High Court of Karnataka, Bangalore, against the afore-mentioned award has been allowed in part by modifying the award passed by the Tribunal, and enhancing the compensation by Rs.28,15,920/-.

8	17.2.2011	Aggrieved, this Special Leave petition is presented, praying for the claim that the petitioners have made before the Tribunal being awarded in toto.

Place: ADVOCATE FOR THE PETITIONERS
Date: 15/17.2.2011

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) No. OF 2011

IN THE MATTER OF:

Smt. V. Sandhya and 2 others Petitioners

Versus

The Oriental Insurance Co.Ltd
and others Respondents

AFFIDAVIT VERIFYING THE SPECIAL LEAVE PETITION

I, Smt. Kamala Achar, aged 64 years, w/o. late H.N.S. Achar, residing at Door No.592, 24th Cross, BSK 2nd Stage, Bangalore, do hereby solemnly affirm and state on oath as follows:-

1. I am one of the petitioners in the present Special Leave Petition and as such I am fully conversant with the facts of the case. I am authorised to swear to this affidavit on behalf of the other petitioners also.

2. The contents of the Synopsis and the List of Dates (pages) Special Leave Petition paras 1 to and the I.As respectively have been read by me carefully and I have fully understood the same, I state that the facts which have been stated therein are true to my knowledge; and no part of it is false; and nothing material has been concealed therefrom.

3. The annexures filed with the Special Leave Petition are all true copies of their respective originals.

Verified at Bangalore on the 15th February 2011

DEPONENT

No.of corrections

Identified by me

Advocate

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) No. OF 2011

IN THE MATTER OF:

Smt. V. Sandhya and 2 others Petitioners

Versus

The Oriental Insurance Co.Ltd
and others Respondents

APPLICATION FOR CONDONATION OF DELAY

The petitioners above named respectfully submit as follows:

1. The aforementioned Special Leave Petition has been filed against the judgment and award dated 5.2.2010 rendered in M.F.A. No.4914/2006(MV) on the file of a Division Bench of the Hon'ble High Court of Karnataka, Bangalore, whereby the said appeal has been allowed in part. To the extent that the claim for compensation that the petitioners had sought has not been awarded in full, as prayed for by them. The present Special Leave Petition has been presented by them.

2. Eventhough the impugned judgment was rendered on 5.2.2010, the award which had been directed to be drawn up in pursuance of the said judgment had not been drawn up till 6.12.2010, and hence, the petitioners who were waiting for the required award being drawn up, not only for filing a Special Leave petition against the same, but also for seeking the enforcement of the said award to the extent that the Hon'ble High Court has enhanced the compensation ordered in favour of them could not file the intended Special Leave Petition early.

Further, the petitioners have been in inexplicable financial hardship that has caused to them on account of the untimely death of the son of the 3rd petitioner who was the husband and father respectively of the other two petitioners. Even the amount awarded by the Motor Accident Claims Tribunal, Bangalore, having been held in deposit, and the enhanced compensation ordered by the Hon'ble High Court, having not so far been deputed or paid over to the petitioners, they were unable to file the intended special leave petition without tangible financial resources. Evenso, in view a certified copy, of the award dated 6.12.2010 having been furnished to them on 15.2.2011, the petitioners have made immediate arrangements though with severe difficulty, for filing the above Special Leave Petition.

3. The petitioners have been quite diligent in the matter. There is no remissness or negligence on their part in pursuing their remedy against the injury that has befallen them in the matter. But for the award having not drawn up and also the financial difficulties that they have been facing, the petitioners would have filed the intended Special Leave Petition earlier to this date. They have a good case on merits, and in the most respectful submission of the petitioners the questions involved in the above mentioned Special Leave Petition are fully covered in their favour by the land mark ruling of this Hon'ble Court, reported as Saral Verma Vs. The Delhi Transport Corporation vide 2009 (6) SCC page 121, it is respectfully submitted that, the just cause of the petitioners would require to be decided on its merits by graciously condoning the unavoidable delay that has been caused in filing the Special Leave Petition.

PRAYER:

4. For the foregoing reasons the petitioners respectfully pray that this Hon'ble Court be pleased to:

Condone the delay in filing the above mentioned Special Leave Petition, in the interest of justice and equity.

New Delhi
Date: 15.2.2011

Advocate for the Petitioners